IN THE COURT OF Court of Civil Court ACJM (SD)

Case No. 245/2025

Rajesh Kumar Sharma Vs Suresh Chand

IN THE MATTER OF:

Rajesh Kumar Sharma ... Applicant

VERSUS

Suresh Chand ... Respondent

Application for Urgent Interim Relief

Order XXXIX Rules 1–2, Code of Civil Procedure, 1908

FACTUAL BACKGROUND

1. The plaintiff advanced a friendly loan of Rs.5,00,000 to the defendant on 01-04-2024 against a promissory note with interest at 12% per annum and repayment due by 31-03-2025.

2. The defendant made a part payment of Rs.50,000 on 15-05-2025, leaving a principal outstanding of Rs.4,50,000 and accrued interest of Rs.60,000, total claim Rs.5,10,000.

3. A legal notice dated 15-06-2026 was served demanding payment of the outstanding amount, which the defendant failed to comply with.

4. The plaintiff has reason to believe that the defendant is attempting to alienate, sell or transfer his immovable properties and other assets to defeat the enforcement of any future decree.

5. The plaintiff filed the suit for recovery of money on 19-10-2026 before the Senior Civil Judge, Tis Hazari, Delhi.

GROUNDS

1. Breach of the promissory note and failure to repay the loan as agreed.

2. Risk of dissipation of the defendant's assets which would render any decree unenforceable.

3. Urgency of the situation as any delay may cause irreparable injury to the plaintiff's rights.

4. Statutory provision under Order XXXIX Rules 1-2 of the Code of Civil Procedure, 1908 permitting interim injunction in such circumstances.

DOCUMENTS RELIED ON

- VALUATION
- AMOUNT_BREAKUP
- OPP_PARTY_DETAILS
- NOTICES
- LEDGER_STATEMENTS
- CONTRACT_OR_PROMISSORY

- VAKALATNAMA
- INTERIM_AFFIDAVIT
- INTERIM_HARM_EVIDENCE

SUPPORTING AFFIDAVIT

INTERIM_AFFIDAVIT

PRAYER

The plaintiff prays that this Hon'ble Court may be pleased to: (i) grant an interim injunction restraining the defendant Suresh Chand from alienating, selling, transferring or otherwise dealing with any of his immovable properties or assets pending the final disposal of the suit; (ii) pass such further or ancillary orders as may be deemed necessary to preserve the status quo; and (iii) award costs of this application.

Place: Deoria Civil Court
Date: 2026-10-19

Applicant
Through Counsel
Parvez Akhtar
Enrollment No.: 65743939